BEFORE THE LOK ADALAT AT VISAKHAPATNAM
(Constituted by District Legal Services Authority, Visakhapatnam Under Section 19 of Legal Services Authorities Act, 1987)
On Saturday, 11th day of December, Two Thousand and Twenty one
L.S.A. No 1187 /2021
In
MOP. No 198/2020
(In the Hon'able Court of II Addl. District Judge, Visakhapatnam)

Present: 1. Sri. G. Bhupal Reddy
II Addl. District & Sessions Judge
Presiding Judge, National Lok Adalat Bench,
Visakhapatnam

2. Sri: L.V. Ramani
Advocate- Member

3.Sri. M. Rama Lakshmi
Social Worker/Advocate – Member

Between:

1. Mylapalli Nookaratnam, W/o Late Ayyanna, Hindu, aged 26 years, r/o Pedda Teenarla Village, Nakkapalli Mandal, Visakhapatnam District, aadhar No 3075 1885 2299 and Mobile No 9000465324
2. Mylapalli Rajini D/o Late Ayyanna, Hindu, aged 6 years, aadhar No 9047 0638 1176 r/o –do—
3. Mylapalli Bharath Roshan S/o Late Ayyanna, Hindu, aged 3 years, aadhar No 8931 3070 9427 r/o –do—
4. Mylapalli Jogimma, W/o Late Tatayya, Hindu, aged 55 years, aadhar No 2032 2349 5353 r/o ---do---
5. Mylapalli Nagamani D/o Late Tatayya, Hindu, aged 24 years, aadhar No 7071 1992 3380 r/o ---do---

(Note: The 2nd and 3rd petitioners are being minors rep. by their mother and natural guardian Mylapalli Nookaratnam i.e. 1st petitioner)

.....Petitioners

And:

1. Janapareddy Appanna @ Gani, S/o Apparao, Hindu, aged 31 years, r/o Upmaka Junction, Nakkapalli Mandal, Visakhapatnam District , rider of motor cycle Reg. No AP 31 CR 6717
2. Allada Kannarao, S/o Nookaraju, Hindu, aged not known to the petitioners but major, r/o D-No 4-44/1, Karriveedhi, Nakkapalli Village & Mandal, Visakhapatnam District , Owner of motor cycle Reg. No AP 31 CR 6717
3. Bajaj Allianz General Insurance Co. Ltd , rep. by its Manager, Peejay Plaza , 3rd floor, CBM Compound, Visakhapatnam

.....Respondents

Brief Particulars of the petition:

This petition is filed by the petitioners against the respondents claiming compensation for the death of deceased Mylapalli Ayyanna due to the accident caused by the 1st respondent.

M. నూకరత్నం

For Bajaj Allianz General Insurance
Authorised Signatory

Amount claimed is Rs 15, 00,000/- and court fee of Rs 19,360/- is paid under Rule of A.P.M.V. Rules.

This petition was referred to the Lok Adalat at the request of both parties / on memo filed by the advocate for the petitioner by the Motor Accidents Claims Tribunal-Cum- II Addl. District Judge Cum MACT, Visakhapatnam.

This petition is coming on 11-12-2021 for final settlement in the presence of petitioners and Respondent No. 3 and Sri. M.P.Naidu Advocate for the petitioners and Sri. T.H. Ramnath Advocate for the 3rd Respondent. Both parties to the petition have agreed for amicable settlement and filed terms of compromise with free will and volition. Hence, the following Award is passed as per the settlement arrived by the parties.

AWARD UNDER SEC.21 OF THE LEGAL SERVICES AUTHORITIES ACT, 1987.

1. Petitioners and Officer representing respondent No. 3 present and represented that the matter is settled for a sum of Rs: 10,00,000/-(Rupees Ten Lakh only) towards full and final settlement of the claim amount.
2. After negotiations and conciliation between the parties, the claim of the petitioners is settled at Rs: 10,00,000/-(Rupees Ten Lakh only) without interest and costs and is hereby awarded accordingly U/s 21 of the Legal Services Authorities Act, 1987 and the compensation amount to be deposited within one month.
3. If the Respondent No 3.does not deposit the above amount within one month from today; the amount so awarded shall carry interest at 7.5% per annum from the date of this award.
4. **APPORTIONMENT OF THE AMOUNT AWARDED SHALL BE AS UNDER:**

   The 1st petitioner being wife is entitled to her share of Rs: 4,00,000/- (Rupees Four Lakh Only).

   The petitioners 2 and 3 being minor childern are entitled to each Rs: 2,00,000/- (Rupees Two lakh Only).

   The 4th petitioner being mother is entitled to Rs: 1,50,000/- (Rupees one lakh Fifty thousand only).

   The 5th petitioner being sister is entitled to Rs: 50,000/- (Rupees Fifty thousand only).

DISBURSEMENT: As per guide lines :-

On Such deposit, the 1st petitioner is permitted to withdraw an amount of Rs. 3,00,000/- (Rupees Three lakh only) and balance amount of Rs. 1,00,000/- (Rupees one lakh only) shall be kept in fixed deposit in any nationalized bank for period of one year

That the entire share of the minors i.e., 2nd and 3rd petitioners shall be kept in fixed deposit in any nationalized bank till they attain majority.

That the 4th petitioner is permitted to withdraw entire her share of Rs: 1,50,000/- (Rupees one lakh fifty thousand only).

That the 5th petitioner is permitted to withdraw entire her share of Rs: 50,000/- (Rupees fifty thousand only).

For Bajaj Allianz General Insurance

Authorised Signatory

M. సూర్యకళ

5. The petitioners not pressed the claim against the Respondent Nos: R/1 & 2 in view of compromise with the respondent No 3.

The court fee paid shall be refunded under Section 21(1) R/w Section 25 of the Legal Services Authorities Act, 1987.

Both parties have affixed their signatures in evidence of their consent for the terms of Award.

1. M. నూకరత్నం.
2. M. నూకరత్నం.
3. M. నూకరత్నం
4. LTM 2 [illegible] Rajamma
5. M. Nagamani

Signature/ L.T.I. of the Petitioners

For Bajaj Allianz General Insurance

Authorised Signatory

Signature of Respondent No. 3

(Insurance Company)

Advocate for the petitioners

Advocate for the Respondent No 3

Given under our hands and the seal of Mega Virtual Lok Adalat Bench on this the 11th day of December, 2021 at District Legal Services Authority, Visakhapatnam.

1. C. V. Ramani
2. M. L. L. Lada

MEMBERS OF THE BENCH

PRESIDING OFFICER
LOK ADALAT BENCH,
VISAKHAPATNAM